

Control Peak

The Government revises the Broadcasting Bill draft after a media backlash and creates an even more stringent content code which seeks to restrain increasingly assertive news channels

■ By Kaveree Bamzai

When the broadcast industry protested against the draft Broadcasting Bill last year, it could not have imagined the solution would be as bad as the problems raised. In creating a new content code that envisages universal and adult certification for news channel programmes as well as a content auditor who will examine the efficacy of what is being aired, even if it pits him against the channel editor-in-chief, the Government has again abrogated to itself the right to determine who will watch what, when and even how.

In the super nanny state envisaged by the I&B Ministry, private broadcasters will also have to fulfil a public service obligation, cable operators will have to carry three Prasar Bharati channels on the prized prime band, and a government-appointed Broadcasting Regulatory Authority of India (BRAI) will hear complaints against channels. "The media in India believes it can do anything under the sky. Every time the issue of regulation comes up, you people (the media) want to stall it," says an irate Minister for Information and Broadcasting Priya Ranjan Dasmunshi. "It cannot go on like this."

While the Broadcasting Bill is long overdue—the first of the 19 drafts was in circulation a decade ago—the stringent provisions against news channels

in the content code smack of the need to control, bringing back memories of Rajiv Gandhi's infamous attempt to muzzle the press in 1988 with the Defamation Bill. There are 40 news channels currently in existence and by the ministry's own admission, 130 fresh licences for new channels have been cleared, signalling an increasingly cacophonous democracy of news and views which may seem alarming to a party that has had a history of media paranoia. The ministry insists it has received innumerable complaints against news channels from citizens, but balks whenever the industry asks officials to display these on its website. Instead, as at a FICCI-sponsored discussion last week, ministry officials lament the "trust deficit" between the Government and broadcasters and the possibility that a new generation of Indians would grow up overdosing on news about Rakhi Sawant. "Do you want your children to know about Spiderman or Hanuman," asked an impassioned I&B Ministry Secretary Asha Swarup.

The Government's solution to this cultural conundrum is a content code, which as N. Ram, editor-in-chief, *The Hindu*, says is "outra-

geously illiberal and clearly unconstitutional. A prize collection of control freaks with no respect for the Constitution and out of touch with contemporary realities must have drafted it." The minister, though, believes the Broadcasting Bill is the "best piece of legislation in the world, along the lines of the British Ofcom", a specious claim because Ofcom is actually a convergence of five previous regulators. It is, in fact, what the convergence commission was envisaged as being but as even Swarup admitted, the "Communication Convergence Bill (of 2000) is not likely to happen now".

Dasmunshi says he is "open to a debate" on the content code, but Swarup believes it

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